

Contextual Elements of Crimes against Humanity

A Comparative Analysis of the ICTY, ICTR and ICC

Bachelor Thesis Presentation
International Legal Studies

Carla Camilla Pattera
University of Vienna

Research Question

How do the contextual elements of crimes against humanity differ under the legal frameworks of the ICTY, ICTR and ICC?

This presentation examines differences in statutory formulation, judicial interpretation and normative codification across three central regimes of international criminal law.

Central Argument

The principal distinction between the ICTY, ICTR and ICC does not lie merely in the substantive meaning of individual contextual elements, but in the legal mechanisms through which these elements acquire normative force: Security Council statutes, tribunal jurisprudence, customary international law, and the ICC Elements of Crimes.

Methodological Frame

1. Statutory Text

- Art. 5 ICTY Statute
- Art. 3 ICTR Statute
- Art. 7 Rome Statute

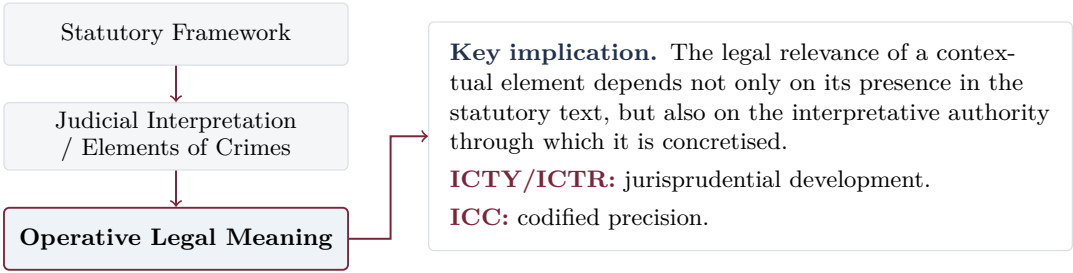
The first level identifies which contextual elements are expressly included in the relevant legal instruments.

2. Interpretation

- ICTY case law
- ICTR case law
- Appeals judgments

The second level asks how statutory terms were concretised through judicial reasoning.

Normative Architecture



Comparative Doctrinal Framework

Contextual Element	ICTY	ICTR	ICC
Attack directed against a civilian population	✔ Statutory Required by Art. 5 ICTY Statute.	✔ Statutory Required by Art. 3 ICTR Statute.	✔ Statutory Required by Art. 7 Rome Statute.
Widespread or systematic attack	⚖️ Jurisprudential Not expressly stated in Art. 5, but recognised by jurisprudence as a contextual element rooted in customary international law.	✔ Statutory Expressly included in Art. 3 ICTR Statute.	✔ Statutory Expressly included in Art. 7 Rome Statute.
Policy or plan	🔍 Evidential Not an independent legal element; relevant to proving the nature of the attack.	🔍 Evidential Not an independent legal element; relevant as evidence.	✔ Statutory Art. 7(2)(a) requires a State or organisational policy.
Armed conflict nexus	✔ Statutory Art. 5 requires commission in armed conflict, whether international or internal.	❌ Not required No armed conflict nexus in Art. 3 ICTR Statute.	❌ Not required No armed conflict nexus in Art. 7 Rome Statute.
Discriminatory grounds	❌ Not required Not generally required, except for persecution.	✔ Statutory Art. 3 restricts jurisdiction to attacks on national, political, ethnic, racial or religious grounds.	❌ Not required No general discriminatory grounds requirement.

Comparative Doctrinal Findings

ICTY Distinctive feature: armed conflict nexus. The ICTY Statute is comparatively sparse. Several central requirements, especially the widespread or systematic nature of the attack, were developed through jurisprudence rather than expressly codified in Art. 5. Doctrinal profile: jurisprudential construction.	ICTR Distinctive feature: discriminatory grounds. The ICTR Statute expressly includes the widespread or systematic requirement and omits any armed conflict nexus. Its defining limitation is the requirement that the attack be committed on national, political, ethnic, racial or religious grounds. Doctrinal profile: situation-specific jurisdiction.	ICC Distinctive feature: policy element. The ICC framework is the most codified. Article 7 Rome Statute is supplemented by the Elements of Crimes, which provide an official interpretative instrument pursuant to Article 9. Doctrinal profile: codified precision.
---	---	--

Key Doctrinal Clarifications

Element	Meaning
Widespread or systematic	The requirement is alternative rather than cumulative. “Widespread” refers primarily to scale, frequency and multiplicity of victims; “systematic” refers to organised, patterned and non-random conduct.
Attack	The attack need not be a military attack. It denotes a course of conduct involving multiple acts of violence or mistreatment directed against a civilian population.
Civilian population	The civilian population must be the primary object of the attack. The presence of some non-civilians does not deprive the population of its civilian character.
Policy element	Under ICTY and ICTR jurisprudence, policy is evidentially relevant but not a separate legal element. Under the Rome Statute, it is expressly required by Art. 7(2)(a).
Armed conflict nexus	The ICTY armed conflict nexus is jurisdictional and narrower than customary international law. The ICTR and ICC frameworks recognise crimes against humanity as autonomous from armed conflict.
Discriminatory grounds	The ICTR requirement is best understood as a jurisdictional limitation tailored to the Rwandan situation. It does not represent a general customary-law requirement for all crimes against humanity.

Sources of Normativity

Ad hoc Tribunals ICTY and ICTR case law is not formally binding in the manner of a common-law system. Nevertheless, leading judgments, especially Appeals Chamber decisions, carry significant persuasive authority and shaped the interpretation of crimes against humanity.	International Criminal Court The ICC Elements of Crimes possess a stronger formal status than ICTY or ICTR case law because they were adopted pursuant to Article 9 Rome Statute and assist the Court in interpreting and applying the crimes.
--	---

Selected Leading Authorities

Authority	Function in the Comparative Analysis
<i>Tadić</i>	Clarifies the ICTY armed conflict nexus and rejects discriminatory intent as a general requirement for crimes against humanity.
<i>Akayesu</i>	Central ICTR authority on discriminatory grounds and the interpretation of attacks against a civilian population.
<i>Kunarac</i>	Leading ICTY authority on widespread or systematic attack, civilian population and the non-necessity of a policy or plan.
<i>Blaškić</i>	Important for the indicators of systematicity and the doctrinal development of widespread or systematic attacks.
ICC Elements of Crimes	Official interpretative instrument under Article 9 Rome Statute; clarifies the application of Article 7.
Kenya Situation Decision	Important ICC authority on the policy element and the meaning of “organisation” under Article 7(2)(a).

Concluding Observation

Although the ICTY, ICTR and ICC differ considerably in the statutory formulation of crimes against humanity, their substantive interpretation has converged to a significant extent. The principal differences lie in the normative source of the contextual elements: the ICTY relies heavily on judicial interpretation, the ICTR contains situation-specific jurisdictional limitations, and the ICC offers the most codified framework through Article 7 Rome Statute and the Elements of Crimes.
Presentation Thesis The development of crimes against humanity reflects a gradual movement from jurisprudential construction toward codified precision, while preserving the doctrinal foundations established by the ad hoc tribunals.

Selected References

Primary Sources: ICTY Statute (Art. 5); ICTR Statute (Art. 3); Rome Statute (Art. 7); ICC *Elements of Crimes*.

Leading Cases: *Tadić*; *Akayesu*; *Kunarac*; *Blaškić*; *Situation in the Republic of Kenya*.

Selected Literature: Werle & Jessberger, *Principles of International Criminal Law*; Cassese, *International Criminal Law*; Bassiouni, *Crimes Against Humanity*.